

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

-----X 09 CV 2598 (BMC)

XAVIER TOPPINGS, KATISHA JOHNSON
and MARY TOPPING,

Plaintiffs,

AMENDED COMPLAINT

-against-

JURY DEMAND

THE CITY OF NEW YORK, SERGEANT NEIL
PRASAD (Tax #925940) DETECTIVE
CHRISTOPHER CONNELL (Tax #922142),
POLICE OFFICER JOEL POLICHTRON
(Tax # 933192), and UNDERCOVER OFFICER
(Shield #6529) and POLICE OFFICER JOHN
DOE 1 (Shield # 4682),

Defendants.

-----X

The plaintiffs XAVIER TOPPINGS, KATISHA JOHNSON and MARY TOPPING, by their attorney(s), THE LAW OFFICES OF WALE MOSAKU, P.C., complaining of the defendants, THE CITY OF NEW YORK, SERGEANT NEIL PRASAD (Tax #925940) DETECTIVE CHRISTOPHER CONNELL (Tax #922142), POLICE OFFICER JOEL POLICHTRON (Tax # 933192), UNDERCOVER OFFICER (Shield #6529), and POLICE OFFICER JOHN DOE 1 (Shield # 4682) (collectively referred to as the Defendants), upon information and belief, allege as follows:

NATURE OF THE ACTION

1. This is an action at law to redress the deprivation of rights secured to the plaintiffs under color of statute, ordinance, regulation, custom, and/or to redress the deprivation of rights, privileges, and immunities secured to the plaintiffs by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States, and by Title 42 U.S.C. § 1983.

JURISDICTION

2. The jurisdiction of this Court is invoked under 28 U.S.C. §1343(3), this being an action authorized by law to redress the deprivation of rights secured under color of state and city law, statute, ordinance,

regulation, custom and usage, of right(s), privilege(s) and immunity secured to each of the plaintiffs by the Fourteenth Amendment to the Constitution of the United States. Jurisdiction of this court exists pursuant to 42 USC §1983 and under the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution.

3. As the deprivation of rights complained of herein occurred within the Eastern District of New York, venue is proper in this district pursuant to 28 U.S.C. §§1391 (b) and (c).
4. All causes of action not relying exclusively on the aforementioned federal causes of action as a basis of this Court's jurisdiction are based on the Court's supplemental jurisdiction pursuant to 28 U.S.C. §1367 to hear state law causes of action.

SATISFACTION OF THE PROCEDURAL PREREQUISITES FOR SUIT

5. All conditions precedent to filing of this action have been complied with; on January 30, 2009, within ninety days after the claims alleged in this complaint arose, a written notice of claim, sworn to by the plaintiffs' counsel, was served upon the defendant City of New York by personal delivery of the notice in duplicate, to the person designated by law as one to whom a summons issued against such party may be delivered in an action in the applicable Courts. The plaintiffs were respectively assigned the following claim numbers by the defendant City of New York: Xavier Topping: 2009PI004276; Katisha Johnson: 2009PI004278; Mary Topping: 2009PI004279.
6. At least thirty days have elapsed since the service of the above-mentioned notice of claim, and adjustment or payment of each plaintiff's claim has been neglected or refused.
7. This action, pursuant to New York State and City Law, has been commenced within one year and ninety days after the happening of the event upon which each plaintiff's claim is based.

THE PARTIES

8. During all times material to this complaint, the plaintiffs were, and still are, residents of the City of New York, presently residing in the Kings County, City and State of New York.
9. At all relevant times, defendants SERGEANT NEIL PRASAD (Tax #925940) DETECTIVE CHRISTOPHER CONNELL (Tax #922142), POLICE OFFICER JOEL POLICHTRON (Tax #933192), UNDERCOVER OFFICER (Shield #6529), and POLICE OFFICER JOHN DOE 1 (Shield # 4682) of the New York City Police Department (collectively referred to as defendant officer(s)), were upon information and belief, and still are, law enforcement officers in the employ of the Police Department of the City of New York.
10. At all times herein, the defendant officers were employed by the police department of the City of New York, State of New York, and were acting under the color of their official capacity and their acts were performed under color of the statutes and ordinances of the City of New York and/or the State of New York. The defendant officers were the servants, agents, and employees of their co-defendant, the City of New York, so that their acts are imputed to the City of New York and its Police Department.
11. At all relevant times, the defendant City of New York was/is a municipal corporation of the State of New York, and was/is the employer of the defendant Officers, through it's Police Department, namely New York City Police Department and the actions of the defendant officers complained of herein were done as part of the custom, practice, usage, regulation and/or direction of the City of New York.
12. Plaintiffs sue all defendants in their individual and official capacities.

FACTUAL ALLEGATIONS COMMON TO ALL CAUSES OF
ACTION

13. On or about November 22, 2008, between the hours of 07:00 p.m. and 08:00 p.m., the defendant officers were on duty and were acting within the scope of their authority as police officers for the defendant City of New York and in furtherance of the business of the City of New York.
14. On or about November 22, 2008, between the hours of approximately 07:00 p.m. and 08:00 p.m., at and within the plaintiffs residence located at 590 Blake Avenue, #1C, Brooklyn, New York 11207 in the County of Kings, City of New York (hereinafter "subject premises"), the defendant officers illegally and unlawfully invaded, entered and searched the subject premises without the plaintiffs consent.
15. That at the time of the illegal invasion, entry and search, the defendant officers did not have a search warrant.
16. That at the above-mentioned date and time, the defendant officers, knocked on the front door of the subject premises.
17. That the plaintiff Mary Toppings, who was and is disabled, opened the front door and was confronted by the three defendant officers, who, upon information and well-founded belief ere defendants SERGEANT NEIL PRASAD (Tax #925940) DETECTIVE CHRISTOPHER CONNELL (Tax #922142) and POLICE OFFICER JOEL POLICHTRON (Tax # 933192).
18. That the defendant officers asked plaintiff Mary Toppings if anyone was in the apartment, to which plaintiff Mary Toppings replied that her son Xavier Topping, her son's partner, Katisha Johnson, and her two grandchildren (who are both autistic) were in the home.
19. That at that time the plaintiff Xavier Topping (who is also disabled and collects social security disability benefits), was seated on a couch in the living room and was visible to the defendant officers as they stood by the front door of the subject premises.

20. That the defendant officers thereafter walked into the subject premises without obtaining permission, and thereafter proceeded to thoroughly search the premises.
21. That one of the defendant officers approached the plaintiff Xavier Topping and ordered him to stand up.
22. That after complying with said officer's instructions, the plaintiff Xavier Topping's pockets were searched.
23. Nothing illegal was recovered from the plaintiff Xavier Topping during said search.
24. However, following said illegal search, the plaintiff Xavier Topping was falsely accused of having twenty (\$20.00) of "buy money" in his possession.
25. The plaintiff Xavier Topping vehemently denied the false accusation of the defendant officers.
26. The plaintiffs Xavier Topping and Katisha Johnson were thereafter falsely and unlawfully arrested and taken away to the 75th Precinct of the New York City Police Department.
27. After transporting the plaintiffs Xavier Topping and Katisha Johnson to the 75th police precinct, their infant autistic children, who were understandably upset at observing their parents being treated in the above-referenced manner, were told by the defendant officers that their daddy was "a f'ing drug dealer".
28. The plaintiffs Xavier Topping and Katisha Johnson were thereafter unlawfully imprisoned at a New York City Police Precinct.
29. That during said illegal imprisonment, plaintiffs Xavier Topping and Katisha Johnson were illegally and unlawfully strip searched.
30. That nothing illegal was recovered from the plaintiffs Xavier Topping and Katisha Johnson, during or following said illegal strip searches.
31. Despite the fact that nothing illegal was recovered from them, the defendant officers thereafter photographed and fingerprinted the

plaintiffs Xavier Topping and Katisha Johnson at a New York City Police precinct.

32. The defendant officers subsequently transported the plaintiffs Xavier Topping and Katisha Johnson to “Central Booking”, located within the Kings County Criminal Court situated at 120 Schermerhon Street, Brooklyn, New York 11201, where they maliciously attempted to induce the Kings County District Attorney to file criminal charges against the plaintiffs Xavier Topping and Katisha Johnson.
33. That after having been caused to spend more than thirty six hours in jail, the plaintiffs Xavier Topping and Katisha Johnson were released from “Central Booking” through a side exit door, after having been informed that the Kings County District Attorney’s Office had declined to prosecute them.
34. There was absolutely no basis for the defendant officers to have invaded the plaintiffs’ residence as set forth herein.
35. At the time plaintiffs Xavier Topping and Katisha Johnson were arrested, they protested to and informed defendant officers that they had committed no crime or offense and offered to prove their innocence. However the defendant officers refused to pay any attention to plaintiffs Xavier Topping and Katisha Johnson’s offers, and arrested and imprisoned said plaintiffs in wanton and malicious disregard for the truth.
36. Defendant City, through its agents, servants, officers and employees, committed the illegal search of the defendants residence, and the subsequent arrest and imprisonment of plaintiffs Xavier Topping and Katisha Johnson without any warrant or other legal process, without informing said plaintiffs of the reason for the search(es), arrest(s) and imprisonment(s), and without making any proper complaint.
37. The plaintiffs were innocent of any illegal acts, and were forced by the defendants, to submit to search, arrest, imprisonment and

summary punishment, and other indignities and humiliation, entirely against their will.

38. That following their release from detention, the plaintiffs filed a complaint with the Internal Affairs Bureau (IAB), and the Civilian Complaint Review Board (CCRB) of the New York City Police Department.
39. That following the filing of said complaints, certain officers of the IAB, including but not limited to a Sergeant “Vinas”, went to the plaintiffs residence, despite being aware that the plaintiff were represented by counsel, and attempted to have the plaintiff Xavier Topping sign a document wherein he would admit that he actually had “buy money” in his possession at the time of the initial arrest.
40. That when the plaintiff Xavier Topping refused to sign such a document because that was not true, the IAB officers, who were supposed to be investigating the plaintiff’s complaint, instead threatened the plaintiff Xavier Topping, telling him that if they subsequently discovered that he was lying, he would go to jail.
41. That following said threats, the plaintiff refused to take any further part in the sham IAB investigation.
42. The IAB Case number is/was 08-53901.
43. That at the time the plaintiff Xavier Topping was arrested, the handcuffs were secured too tightly to his wrists, causing him pain and suffering.

FIRST CAUSE OF ACTION: FALSE ARREST AND FALSE IMPRISONMENT

44. By this reference, each plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 43 of this complaint as though fully set forth herein.
45. The arrest, detention and imprisonment of the plaintiffs were without just or probable cause and without any warrant or legal process directing or authorizing said plaintiffs arrest(s) and/or detention.

46. As a result of plaintiffs false arrest(s) and/or imprisonment, they have been caused to suffer humiliation, great mental and physical anguish, embarrassment and scorn among those who know them, were prevented from attending to their necessary affairs, and have been caused to incur legal expenses, and has been otherwise damaged in their character and reputation.
47. Consequently, each plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

SECOND CAUSE(S) OF ACTION AGAINST ALL DEFENDANTS:

DEPRIVATION OF CIVIL RIGHTS

48. Each plaintiff repeats and realleges paragraphs 1 through 47 as if each paragraph is repeated verbatim herein.
49. The defendant officers acted under color of law, in their official capacity and their acts were performed under color of the statutes and ordinances, customs and practices of the defendant City of New York. The allegations in this paragraph are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery.
50. Acting under color of law and pursuant to official policy, practice, or custom, defendant City of New York intentionally, knowingly, negligently and recklessly failed to instruct, supervise, control, and discipline, on a continuing basis, the defendant officers in their duties, in order that they refrain from conducting unlawful and malicious searches of residences and persons, and in order that they refrain from arresting and imprisoning innocent members of the public. The allegations in this paragraph are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery.
51. Acting under color of law and pursuant to official policy, practice, or custom, defendant City of New York intentionally, knowingly,

negligently and recklessly failed to instruct, train, and supervise defendant police officers on a continuing basis in the correct procedure for conducting a search of premises and/or persons. The allegations in this paragraph are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery.

52. Defendant City of New York had knowledge, or, had they diligently exercised their duties to instruct, supervise, control, and discipline on a continuing basis, should have had knowledge about the defendant officers tendencies, and should have known that the wrongs which were done, as heretofore alleged, were likely and/or about to be committed. Defendant City of New York had power to prevent or aid in preventing the commission of said wrongs, could have done so by reasonable diligence, and intentionally, knowingly, negligently or recklessly failed or refused to do so. The allegations in this paragraph are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery.

53. Defendant City of New York, directly or indirectly, under color of law, approved or ratified the unlawful, deliberate, malicious, reckless, and wanton conduct of defendant police officers heretofore described. The allegations in this paragraph are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery.

54. The conduct of the defendants deprived each plaintiff of the following rights, privileges and immunities secured to them by the Constitution of the United States:

(a) The right to be secure in his/her person and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments to the Constitution of the United States.

(b) The right to be promptly informed of the nature and cause of the accusation against him/her, secured to him/her under the Sixth and Fourteenth Amendments to the Constitution of the United States.

(c) The right not to be deprived of life, liberty, or property without due process of law, and the right to the equal protection of the laws, secured to him/her by the Fifth and Fourteenth Amendments to the Constitution of the United States.

(d) The right to be free from unreasonable detention and/or continued detention without probable cause in that each plaintiff was detained.

(e) The right to be free from the use of excessive force in that the plaintiff was assaulted, battered and seriously injured by the defendant officers.

55. As a result of the actions of the defendants, each plaintiff was deprived of his/her rights, privileges, and immunities secured by the United States Constitution, in particular, the Fourth, Fifth, and Fourteenth Amendments, in contravention of 42 USC §1983, when the defendant officers unlawfully searched the plaintiffs residence, and unlawfully detained and arrested said plaintiff. The allegations in this paragraph are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery.

56. That the defendant officers, who were witness(es) to the fact that the plaintiff's constitutional rights were being violated, and also participants, failed to perform their affirmative duty to intervene and stop and/or prevent the other defendant officers from illegally searching the plaintiffs residence, and subjecting the plaintiffs to illegal bodily searches, arrests and detention. The allegations in this paragraph are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery.

57. That the defendant officers, who were witness(es) to the fact that the plaintiff's constitutional rights were being violated, and also participants, were deliberately indifferent to the plaintiffs plight, in that they failed to perform their affirmative duty to intervene and stop and/or prevent the other defendant officers from conducting the illegal searches, arrests and detention. The allegations in this paragraph are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery.

58. That the defendant officers, in contravention of 42 USC §1983, prior to conducting the illegal bodily searches, arrests and detention of the plaintiffs, agreed and conspired amongst themselves to act in concert to conduct the illegal searches, arrests and detention of the plaintiffs; the illegal searches, arrests and detention of the plaintiffs that they inflicted upon the plaintiffs were overt acts done in furtherance of that goal; and that their unconstitutional acts of conducting the illegal bodily searches, arrests and detention of the plaintiffs, caused emotional injuries to the plaintiffs. The allegations in this paragraph are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery.
59. That the defendant officers, in contravention of 42 USC §1983, after conducting the illegal bodily searches, arrests and detention of the plaintiffs; agreed and conspired amongst themselves to attempt to induce the Kings County District Attorney to charge and prosecute the plaintiffs with unspecified crimes/offenses. The allegations in this paragraph are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery.
60. The defendant officers were the actual agents of the defendant City of New York and were following the customs, practices, ordinances and/or regulations of the City of New York when they violated plaintiffs constitutional and civil rights, and the City of New York is therefore responsible for their acts and liable to the plaintiffs for the damages they suffered. The allegations in this paragraph are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery.
61. The actual principal/agent relationship between defendant City and the defendant officers was created by the fact they were employees of defendant City, and the City had the right to and it did regulate and control the activities and conduct of the defendant officers. The

allegations in this paragraph are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery.

WHEREFORE, each plaintiff respectfully prays for judgment as follows:

1. For compensatory damages against all defendants in an amount to be proven at trial;
2. For exemplary and punitive damages against each defendant in an amount to be proven at trial;
3. For costs of suit herein, including plaintiffs reasonable attorney's fees; and
4. For such other and further relief as the court deems proper.

DEMAND FOR TRIAL BY JURY

Pursuant to Rule 38 (b) of the Federal Rules of Civil Procedure, the plaintiffs demand a trial by jury.

Dated: Brooklyn, New York
August 28, 2009

LAW OFFICES OF WALE MOSAKU, P.C.

By: /s/

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